

*quia non indiget*, for a manor may be demanded without mentioning that it lies in any town, but *cum pertinentiis*, although it comes after the town, shall relate to the manor, *quia indiget*. *Vide* 3 E. 4. 10. the like case. But it was objected, that where by the second clause it was granted, that the censors should have *supervisum et scrutinium, correctionem et gubernationem omnium et singulorum medicorum, &c.* they had power to fine and imprison.

To that it was answered,—1. That *this* is but part of the sentence, for by the entire sentence it appears in what manner they shall have power to punish, for the words are, *ac punitionem eorum pro delictis suis in non bene exequendo, faciendo, vel utendo illa facultate*; so that without question all their power to correct and punish the physicians by this clause is only limited to these three cases, *sc. in non bene exequendo, faciendo, vel utendo, &c.* Also this word *punitionem* is limited and restrained by these words, *ita quod puniatio eorundem medicorum, &c. sic in premissis delinquentium, &c.* which words, *sic inpremissis delinquentium*, limit the former words in the first part of this sentence, *ac punitionem eorum pro delictis suis in non bene exequendo, &c.* 2. It would be absurd, that in one and the same sentence the makers of the Act should give them a general power to punish without limitation; and a special manner how they shall punish, in one and the same sentence. 3. Hil. 38 Eliz. in a *quo warranto* against the Mayor and Commonalty of London, it was held, that where a grant is made to the mayor and commonalty, that the mayor for the time being should have *(d) plenum et integrum scrutinium, gubernationem, et correctionem omnium et singulorum mysteriorum, &c.* without granting them any Court, in which should be legal proceedings, that is good for search, whereby a discovery may be made of offences and defects, which may be punished by the law in any Court; but it doth not give, nor can give them any irregular or absolute power to correct or punish any of the [119 b] subjects of the kingdom at their pleasure.

2. It was objected, that it is incident to every Court created by letters patent, or Act of Parliament, and other Courts of Record, to punish any misdemeanor done in Court, in disturbance or contempt of the Court, by imprisonment (D). To which it was answered, that neither the letters patent nor the Act of Parliament has granted them any Court, but only an *(a)* authority, which they ought to pursue, as it shall be afterwards said. 2. If any Court had been granted them, they could not by any incident authority *implicitè* granted them, for any misdemeanor done in Court, commit him to prison without bail or mainprize, until he should be by the commandment of the president and censors, or their successors, delivered, as the censors have done in this case.

3. There was not any such misdemeanor for which any Court might imprison him, for he only shewed his case to them, which, he was advised by his counsel, he might justify, which is not any offence worthy of imprisonment. The second point was, admitting that the censors had power by the Act, if they had pursued their authority, or not?

And it was resolved by the Chief Justice, Warburton and Daniel, that they had not pursued it for six reasons. 1. By the Act, the censors only have power to impose a fine, or amercement; and the president and censors imposed the amercement of 5l. upon the plaintiff. 2. The plaintiff was summoned to appear *coram presidente et censoribus, &c. et non comparuit*, and therefore he was fined 10l. whereas the president had no authority in that case. 3. The fines or amercements to be imposed by them, by force of the Act, do not belong to them, but to the King, for the King had not granted the fines or amercements to them, and yet the fine is appointed to be paid to them, *in proximis comitiis*, and they have imprisoned the plaintiff for nonpayment thereof. 4. They ought to have committed the plaintiff presently, by construction of law, although that no time be limited in the Act, as in the statute of W. 2. cap. 11. *(b) De servientibus, ballivis, &c. qui ad compotum reddend' tenentur, &c. cum dom' hujusmodi servientium dederit eis aulitores compoti, et*

(d) Cart. 120, 121.

(d) *Vid. ante* note (c) *Butt's case*, 7 Co. 25 a.

(a) *Postea* 121 a.

(b) 2 Inst. 379, 380. W. 2. c. 11. Plowd. 17 b. Rast. Account 2.